

24STCV27664 24STCV27664

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Case Number: 24STCV27664 Hearing Date: September 15, 2026 Dept: 224

Iaruso v. Tandeka McCann

TENTATIVE RULING

Default Judgment is DENIED.

A judgment of dismissal is entered for Tandeka McCann given Plaintiff's failure to prosecute and failure to submit all required evidence in support of a default judgment by court-ordered deadlines.

ANALYSIS

FACTS OF THE CASE:

This action arises from Plaintiff's representation of Defendant in an underlying case. Plaintiff alleges that Defendant breached the retainer agreement by wrongfully removing funds from the QSF account that were designated for cost reimbursement.

PROOF OF SERVICE/DEFAULT:

Default entered 11/21/25,

PRINCIPAL REQUESTED: \$ 45,672.88

COSTS: \$ 1,227.30

INTEREST: \$ 9,857.88

TOTAL: \$ 56,758.06

DISPOSITION:

The OSC was previously continued one final time for Plaintiff to correct deficiencies.

On July 9, 2026, Plaintiff submitted a declaration for the Court's consideration. The Court has reviewed the July 9, 2026 declaration on its merits. It does not cure the deficiencies identified on May 22, 2026, and it raises further obstacles to entry of judgment.

The costs figures do not reconcile. The declaration states that the total costs advanced as reflected in the previously filed Memorandum of Costs (MC-010) is \$56,392.96; that prior counsel Anticouni & Associates advanced \$23,753.28 which was billed to and paid directly by Defendant; and that "[a]fter subtracting those costs," the total Plaintiff personally advanced is \$25,778.47. (Iarusso Decl., ¶ 3.) That subtraction does not produce the stated figure. \$56,392.96 less \$23,753.28 is \$32,639.68, leaving \$6,861.21 unaccounted for. The declaration offers no explanation for the difference. The Court cannot enter a money judgment on a principal sum that the supporting declaration's own arithmetic does not support.

The amounts sought have also shifted materially without explanation. The original default judgment package requested a principal sum of \$56,758.06 and costs of \$1,227.30. The July 9, 2026 declaration requests a principal of \$25,778.47 and costs of \$671.10. Plaintiff has not explained the discrepancy. Nor has Plaintiff filed an updated Request for Default or Proposed Default Judgment setting forth these new amounts. A plaintiff may of course seek less on a default than she first demanded, and the Court does not fault Plaintiff for reducing her request. But the Court must be able to determine what is owed and on what basis, and the successive and inconsistent figures Plaintiff has placed before it do not permit that determination.

Further, the showing on service does not establish that 1109 Alden Avenue is Defendant's address, and Plaintiff's own exhibit affirmatively undermines it.

The Court directed Plaintiff to submit proof that 1109 Alden Avenue, Lompoc, CA 93436 is Defendant's correct address of service. The declaration offers no affirmative evidence. It offers instead an inference from silence: that Defendant's counsel "did not dispute, deny, or otherwise challenge the address," and that no motion to quash was filed. (Iarusso Decl., ¶¶ 7, 9.)

The exhibit attached to support that inference says the opposite. In the December 17, 2024 email designated Exhibit A, attorney Gregory Wilbur states that doorbell camera footage shows process server Joseph P. Stetz III did not personally serve Defendant or anyone else; that Stetz left the papers on the front porch after Defendant's grandmother did not answer the door; that the video timestamp corresponds to the date and time of claimed personal service; and that Stetz's declaration of service was false. Mr. Wilbur demanded a stipulation to vacate the default and to effect proper service.

The declaration characterizes this communication as one in which "Mr. Wilbur referenced that Defendant's grandmother had been served at that address." (Iarusso Decl., ¶ 7.) The exhibit states that the grandmother did not answer the door and that no one was served. The characterization is not supported by the document it cites. The exhibit also describes the premises as the grandmother's residence. That tends to undercut, not support, the proposition that the address is Defendant's own.

On this record the Court cannot find that 1109 Alden Avenue, Lompoc, CA 93436 was the proper address for service of Defendant.

Here, the deficiencies were identified with specificity. Plaintiff was given three separate opportunities to cure them, was twice warned in writing that dismissal would follow, and appeared through counsel at the last hearing. The Court has extended Plaintiff every accommodation. The Court's interest in the orderly and timely disposition of its docket cannot be served by indefinite continuances granted to a party who fails to cure clearly delineated discrepancies.

Conclusion

Default Judgment is DENIED.

A judgment of dismissal is entered for Tandeka McCann given Plaintiff's failure to prosecute and failure to submit all required evidence in support of a default judgment by court-ordered deadlines.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion